Nexus Technologies - Mutual Non-Disclosure Agreement (NDA)

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SECTION 1: DEFINITION OF CONFIDENTIAL INFORMATION

'Confidential Information' refers to any proprietary, non-public technical, commercial, financial, or strategic information disclosed by one party ('Disclosing Party') to the other ('Receiving Party'), whether orally, visually, or in tangible or electronic form, that is designated as confidential or should reasonably be understood to be confidential.

SECTION 2: EXCLUSIONS FROM CONFIDENTIALITY

Confidential Information does not include information that:

1. Is or becomes publicly known through no breach of this Agreement.

2. Was already in the lawful possession of Receiving Party prior to disclosure.

3. Is independently developed by Receiving Party without reference to Confidential Information.

4. Is rightfully received from a third party without duty of confidentiality.

SECTION 3: OBLIGATIONS AND STANDARD OF CARE

Receiving Party shall hold Confidential Information in strict confidence, exercising at least the same degree of care it uses to protect its own confidential materials, but no less than reasonable commercial diligence. Receiving Party may disclose Confidential Information only to employees, contractors, and legal advisors with a strict need to know.

SECTION 4: TERM OF OBLIGATION

The confidentiality obligations under this Agreement remain in effect for a period of two (2) years following disclosure, provided that trade secrets and proprietary source code shall remain protected in perpetuity until lawful public disclosure.